

Court No. - 39

Case :- WRIT - C No. - 2891 of 2019

Petitioner :- Pooranveer Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Ajay Dubey, Kamini Pandey (Dubey)

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Ms. Kamini Pandey, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent no.3 and the learned Standing Counsel for Respondents no.1 and 2.

The petitioner in the writ petition is seeking quashing of the recovery notice/demand notice dated 01.12.2018 whereby recovery of a sum of Rs.7,11,118/- towards the arrears of electricity dues is sought to be made from the petitioner.

The contention of the petitioner is that the motor installed at his tube well is of 10 HP which is also shown in the checking report dated 24.12.2018 Annexure 2 to the writ petition at item No.14 but in the impugned electricity bill-cum-disconnection notice Annexure 4 to the writ petition the load has been shown as 15 HP.

We therefore, find that it is a case of disputed bill for which the petitioner has a remedy under Clause 6.5 of the Electricity Supply Code, 2005.

This writ petition is **disposed of** with a direction that if the petitioner appears before the respondent no. 3-Executive Engineer, Electricity Supply Division (II), Dakshinachal Vidut Vitran Nigam Ltd. Etmadpur, District Agra on 31.1.2019 at 11 a.m. personally with the certified copy of this order along with his objection, the respondent No.3 shall provide an opportunity of hearing to the petitioner and decide the objection of the petitioner, in accordance with law, within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, recovery in pursuance of the impugned recovery notice/demand notice dated 01.12.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.3.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 25.1.2019

Nitin Verma